

ORDINANCE NO. _____

ENTITLED: “AN ORDINANCE AMENDING VARIOUS SECTIONS OF TITLE 8, HEALTH AND SAFETY, CHAPTER 8.08, ALARM SYSTEMS, OF THE CHEYENNE CITY CODE PERTAINING TO ALARM DEVICES AND SYSTEMS, AND FALSE ALARMS.”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That various sections of Title 8, Health and Safety, Chapter 8.08, Alarm Systems, of the Cheyenne City Code pertaining to alarm devices and systems, and false alarms are hereby amended as set out in this ordinance. Sections and provisions currently existing within Chapter 8.08 not amended by this ordinance remain unchanged.

8.08.010 Definitions.

“ALARM ADMINISTRATOR” MEANS THE CHIEF OF POLICE, OR HIS OR HER DESIGNEE, WHO IS AUTHORIZED TO ADMINISTER, CONTROL AND REVIEW FALSE ALARM REDUCTION EFFORTS AND ENFORCE THE PROVISIONS OF THIS CHAPTER.

“ALARM INSTALLER” MEANS ANY INDIVIDUAL, PARTNERSHIP OR OTHER BUSINESS ENTITY ENGAGED IN THE SALE OR INSTALLATION OF AN ALARM SYSTEM.

“ALARM MONITORING COMPANY” MEANS ANY INDIVIDUAL, PARTNERSHIP OR OTHER BUSINESS ENTITY ENGAGED IN MONITORING OF ALARM SYSTEMS, VERIFICATION OF THE ACTIVATION OF AN ALARM SYSTEM, OR REQUESTING POLICE RESPONSES.

“CANCELLATION” OR “CANCELLED” MEANS ANY FORM OF COMMUNICATION, FOLLOWING AN ALARM DISPATCH REQUEST, BETWEEN A PERMITTEE, OR AN ALARM MONITORING COMPANY, AND THE POLICE DEPARTMENT BY WHICH THE POLICE DEPARTMENT IS NOTIFIED THAT THERE IS NO EXISTING EMERGENCY AT THE LOCATION OF THE ALARM SYSTEM AND THAT FURTHER POLICE RESPONSE IS NOT REQUIRED.

“VERIFICATION” MEANS AN ATTEMPT, MADE IN THE MANNER SPECIFIED HEREIN, TO DETERMINE WHETHER AN ALARM SIGNAL IS A FALSE ALARM. PRIOR TO SENDING AN ALARM DISPATCH REQUEST TO THE POLICE DEPARTMENT, AN ALARM MONITORING COMPANY MUST PLACE TELEPHONE CALLS TO THE PERMITTEE AND TO THE PERMITTEE’S EMERGENCY CONTACTS UNTIL THE ALARM MONITORING COMPANY IS ABLE TO SPEAK PERSONALLY WITH THE PERMITTEE OR ONE OF THE PERMITTEE’S EMERGENCY CONTACTS. IN THE EVENT AN ALARM MONITORING COMPANY IS UNABLE, AFTER SPEAKING PERSONALLY TO THE PERMITTEE OR ONE OF THE PERMITTEE’S EMERGENCY CONTACTS, TO DETERMINE WHETHER AN ALARM SIGNAL IS A FALSE ALARM, THE ALARM MONITORING COMPANY MAY SEND AN ALARM DISPATCH REQUEST TO THE POLICE DEPARTMENT

“False Alarm” means:

6. “FALSE ALARM” DOES NOT INCLUDE AN ACT OF NATURE, SUCH AS A TORNADO, EXTREME WIND CONDITIONS, OR AN EARTHQUAKE, WHICH CAUSES THE ACTIVATION OF A BURGLAR ALARM SIGNAL.

“PERMITTEE” MEANS ANY INDIVIDUAL OR BUSINESS ENTITY WHICH HAS BEEN ISSUED AN ALARM SYSTEM PERMIT PURSUANT TO THIS CHAPTER.

“PERMITTEE’S EMERGENCY CONTACTS” MEANS THOSE PERSONS DESIGNATED BY A PERMITTEE AS AN EMERGENCY CONTACT PURSUANT TO SECTION 8.08.020 OF THIS CHAPTER.

“VERIFY” MEANS AN ATTEMPT BY THE PERMITTEE OR AN ALARM MONITORING COMPANY, DESIGNATED BY A PERMITTEE FOR THE ALARM SYSTEM LOCATION, TO DETERMINE WHETHER AN ALARM SYSTEM SIGNAL IS A FALSE ALARM. AN ALARM MONITORING COMPANY MUST FOLLOW THE VERIFICATION PROCEDURE AS DEFINED IN THIS CHAPTER PRIOR TO SENDING AN ALARM DISPATCH REQUEST TO THE POLICE DEPARTMENT.

8.08.020 Permits required.

~~A. All persons which maintain an alarm system which terminates directly or indirectly at the Cheyenne police department or to which the Cheyenne police are expected to respond, must obtain a valid permit for the operation of the alarm system.~~ **EVERY PERSON WHO MAINTAINS AN ALARM SYSTEM, TO WHICH THE POLICE DEPARTMENT IS EXPECTED TO RESPOND, EITHER DIRECTLY OR INDIRECTLY, MUST OBTAIN A VALID ALARM SYSTEM PERMIT FOR THE ALARM SYSTEM WITHIN THIRTY (30) DAYS OF ACTIVATION OF THE SYSTEM. APPLICATIONS MUST BE COMPLETED AND SUBMITTED TO THE OFFICE OF CITY CLERK TOGETHER WITH A PERMIT FEE OF TWO HUNDRED DOLLARS (\$200.00). UPON ISSUANCE OF A PERMIT, AN ADHESIVE DECAL WILL BE PROVIDED TO THE PERMITTEE WHICH MUST BE PLACED AT THE ALARM SYSTEM LOCATION IN SUCH A MANNER THAT THE DECAL MAY BE READILY OBSERVED BY RESPONDING POLICE OFFICERS.**

B. A PERMIT WILL REMAIN VALID FOR SO LONG AS THE PERMITTEE CONTINUES TO OWN OR OCCUPY THE PROPERTY AT WHICH THE ALARM SYSTEM HAS BEEN INSTALLED OR ACTIVATED OR UNTIL THE PERMIT HAS BEEN REVOKED PURSUANT TO THIS CHAPTER. A PERMIT ISSUED PURSUANT TO THIS CHAPTER MAY NOT BE ASSIGNED OR TRANSFERRED BY A PERMITTEE. IN THE EVENT A PROPERTY AT WHICH AN ALARM SYSTEM HAS BEEN INSTALLED AND ACTIVATED IS NOT OWNED OR OCCUPIED BY A PERMITTEE, THE NEW OWNER OR OCCUPANT MUST APPLY FOR A PERMIT PURSUANT TO THE PROVISIONS OF THIS CHAPTER.

~~B. C.~~ **The police chief or his or her designated representative is authorized to issue alarm system permits. Permits shall be issued and valid when the permit holder or applicant fulfills the following requirements:**

1. APPLICATION FORM, WITH PAYMENT OF PERMIT FEE, IS SUBMITTED TO THE OFFICE OF THE CITY CLERK WITH COMPLETE INFORMATION AS INDICATED ON THE FORM, INCLUDING:

~~1. a.~~ **EMERGENCY CONTACT PERSONS AND THEIR TELEPHONE NUMBERS FOR** placement on a list maintained with **BY** the police department of all persons and ~~their telephone numbers~~ who are currently authorized and responsible to enter the **ALARM SYSTEM** premises and deactivate the alarm;

~~It is unlawful for any person included on the list, who has been personally contacted by the police department, to fail to promptly appear at the premises where the alarm is located and deactivate the alarm for which they are responsible;~~

b. APPLICANTS WILL BE REQUIRED TO PROVIDE A MINIMUM OF TWO EMERGENCY CONTACT NAMES AND TELEPHONE NUMBERS ON THE PERMIT APPLICATION AND TO PROVIDE THE SAME EMERGENCY CONTACT INFORMATION TO THE PERMITTEE’S ALARM MONITORING COMPANY. A PERMITTEE MAY BE SUBJECT TO A FEE OF ONE HUNDRED DOLLARS (\$100.00) IF ANY RESPONDING

POLICE OFFICER IS UNABLE TO ESTABLISH CONTACT WITH THE PERMITTEE OR WITH EMERGENCY CONTACTS LISTED IN THE APPLICATION FOR THE PURPOSE OF GRANTING ACCESS TO THE ALARMSYSTEM LOCATION OR DEACTIVATING THE ALARM. IF THE RESPONDING POLICE OFFICER CANNOT CONFIRM THAT AN ALARM SIGNAL WAS CAUSED BY AN ATTEMPTED INTRUSION AND IF THERE ARE NO SIGNS OF FORCED ENTRY, THE ALARM SIGNAL WILL BE COUNTED AS A FALSE ALARM.

~~2. A description of the alarm system;~~

~~3. Payment of an annual permit fee of twenty-five dollars (\$25.00).~~

~~C. All permit holders must annually renew their permits with the police department and file written verification of the continued existence and status of the alarm system. All alarm system permit holders must notify the police department immediately if and when the alarm system is modified or disconnected.~~

D. EVERY PERMITTEE MUST, WITHIN FIVE CALENDAR DAYS, NOTIFY THE POLICE DEPARTMENT AND THE PERMITTEE'S ALARM MONITORING COMPANY WHEN THE PERMITTEE'S EMERGENCY CONTACT INFORMATION CHANGES, WHEN THE ALARM SYSTEM IS MODIFIED, DISCONNECTED OR REPLACED WITH A NEW SYSTEM, OR WHEN THERE IS ANY CHANGE IN THE STATUS OF THE PERMITTEE'S ALARM MONITORING COMPANY.

~~D. E. An application for an alarm permit will be processed in a timely manner. AN APPLICATION The permit may be denied or renewal refused if the applicant has not complied with the provisions of these sections THIS CHAPTER, or if the APPLICATION CONTAINS applicant has made any false, misleading, or fraudulent or false statement of a material fact. in applying for a permit, or its renewal.~~

F. PERMITS ISSUED PURSUANT TO THIS CHAPTER MAY NOT BE TRANSFERRED OR ASSIGNED.

G. EACH PERMITTEE IS RESPONSIBLE FOR TIMELY PAYMENT OF ANY FINES OR FEES ASSESSED FOR VIOLATION(S) OF THIS CHAPTER.

8.08.025 CURRENT PERMITTEES.

EVERY ALARM SYSTEM PERMIT WHICH WAS ISSUED PRIOR TO SEPTEMBER 1, 2013 AND WHICH REMAINS IN FORCE AND EFFECT MAY BE CONVERTED INTO AN ALARM SYSTEM PERMIT ISSUED PURSUANT TO THIS CHAPTER UPON PAYMENT OF A FEE OF TWENTY-FIVE DOLLARS (\$25.00) AND THE FILING OF AN APPLICATION AS SPECIFIED IN SECTION 8.08.020 OF THIS CHAPTER.

8.08.030 Revocation OR DENIAL of permit.

A. The chief of police may, after ENGAGING THE APPROPRIATE PROCEDURE PROVIDED FOR IN SECTION 8.08.040 OF THIS CHAPTER, AND AFTER giving notice to the PERMITTEE, permit holder, REQUEST THE order revocation of the permit and/or disconnection of the alarm system from the police department for noncooperation of the PERMITTEE permit holder or for violations of these sections THIS CHAPTER.

B. THE CHIEF OF POLICE, OR HIS OR HER DESIGNEE, WILL PROVIDE WRITTEN NOTICE OF THE PROPOSED REVOCATION OF AN ALARM SYSTEM PERMIT TO THE PERMITTEE. THE WRITTEN NOTICE SHALL BE SERVED PERSONALLY ON THE PERMITTEE OR MAILED TO THE PERMITTEE, BY CERTIFIED MAIL, RETURN RECEIPT REQUESTED, AT THE ADDRESS SHOWN IN THE ALARM SYSTEM PERMIT APPLICATION. THE WRITTEN NOTICE SHALL

CONTAIN A STATEMENT OF THE REASON(S) FOR PROPOSED REVOCATION OF THE PERMIT. THE PERMITTEE SHALL HAVE TEN (10) BUSINESS DAYS FROM THE DATE OF RECEIPT OF THE NOTICE TO FILE A WRITTEN REQUEST FOR A HEARING. THE WRITTEN REQUEST FOR HEARING MUST BE FILED IN THE OFFICE OF THE CITY CLERK. IF NO REQUEST FOR HEARING IS RECEIVED WITHIN SAID TIME LIMIT, THE PERMIT MAY BE REVOKED BY THE CHIEF OF POLICE. IF THE PERMITTEE FILES A TIMELY REQUEST FOR HEARING WITH RESPECT TO THE PROPOSED REVOCATION OF THE PERMIT, A HEARING WILL BE CONDUCTED IN THE MANNER SPECIFIED IN SECTION 8.08.030(C). NO PERMIT MAY BE REVOKED DURING THE PENDENCY OF A HEARING WHICH IS REQUESTED PURSUANT TO THIS SECTION.

~~D. C.~~ A PANEL OF THREE MEMBERS OF THE CITY COUNCIL, SELECTED BY THE PRESIDENT OF THE CITY COUNCIL, ~~The governing body~~ shall CONDUCT A HEARING ON THE PROPOSED REVOCATION OF THE ALARM SYSTEM PERMIT. THE HEARING SHALL BE CONDUCTED ~~hear the appeal~~ no MORE later than thirty (30) days ~~from~~ AFTER THE DATE THAT THE REQUEST FOR HEARING WAS FILED PURSUANT TO SECTION 8.08.030(B), UNLESS THE PERMITTEE AND THE POLICE CHIEF AGREE IN WRITING TO EXTEND THE TIME LIMIT FOR THE HEARING. ~~when it is filed, and~~ A WRITTEN notice of hearing shall be provided to THE PERMITTEE AND THE CHIEF OF POLICE AT LEAST TEN (10) BUSINESS DAYS PRIOR TO THE DATE ~~all parties within five days of the hearing.~~ At the time and place set for the hearing, the HEARING PANEL ESTABLISHED PURSUANT TO THIS SUB-SECTION ~~governing body~~ shall give all parties a reasonable opportunity to be heard. The HEARING PANEL ~~governing body~~ may affirm or reverse the decision GRANT OR DENY ~~of the police department.~~ THE POLICE CHIEF'S REQUEST FOR REVOCATION OF THE ALARM SYSTEM PERMIT THROUGH THE ISSUANCE OF A WRITTEN DECISION.

1. UPON THE REVOCATION OF AN ALARM SYSTEM PERMIT BY THE CHIEF OF POLICE OR THE PANEL DESIGNATED BY THE PRESIDENT OF THE CITY COUNCIL, THE ALARM SYSTEM LOCATION WILL BE PLACED ON A NO RESPONSE LIST AND THE POLICE DEPARTMENT WILL NOT RESPOND TO THE ALARM SYSTEM LOCATION UNLESS CRIMINAL ACTIVITY AT THE LOCATION IS VERIFIED BY VIDEO SURVEILLANCE OR BY SOMEONE ON SCENE.

2. AFTER THE REVOCATION OF AN ALARM SYSTEM PERMIT, THE PERMITTEE MAY REQUEST THE REINSTATEMENT OF THE PERMIT AFTER PRESENTING EVIDENCE OF MEASURES TAKEN TO PREVENT FUTURE FALSE ALARMS OR TO CORRECT OTHER VIOLATIONS OF THIS CHAPTER. THE POLICE CHIEF WILL REVIEW THE INFORMATION AND DETERMINE WHETHER TO REINSTATE THE PERMIT. IF A PERMIT IS REINSTATED, A REINSTATEMENT FEE OF FIFTY DOLLARS (\$50.00) WILL BE REQUIRED.

~~B. D.~~ Any person who has been denied a permit or renewal of a permit may informally seek relief by presenting to the police department evidence that all aspects of these sections have been complied with. ~~This evidence must be presented within ten (10) days of denial, and within five days thereafter, the police department shall notify the aggrieved party of its decision and reason for the decision.~~ IF AN APPLICATION FOR AN ALARM SYSTEM PERMIT IS DENIED, THE APPLICATION FEE SHALL BE REFUNDED TO THE APPLICANT. AN APPLICANT MAY SEEK REVIEW OF THE DENIAL OF AN APPLICATION FOR AN ALARM SYSTEM PERMIT BY FILING A REQUEST FOR HEARING WITHIN TEN (10) BUSINESS DAYS AFTER THE DENIAL OF THE APPLICATION. A HEARING SHALL THEREAFTER BE CONDUCTED IN ACCORDANCE WITH THE HEARING PROCEDURES OF THIS SECTION.

~~C.~~ Any person aggrieved by a decision of the police department may appeal to the governing body. An appeal must be perfected within fifteen (15) days of the police department decision by filing with the city clerk a notice or letter of appeal stating the basis for the appeal.

8.08.040 Response to alarms – False alarms – Fees.

~~C. Whenever the police are called upon to respond to a false alarm in excess of five times in any calendar year, a fee of one hundred dollars (\$100.00) shall be paid to the city by the permit holder.~~ **THE POLICE DEPARTMENT WILL RESPOND TO TWO FALSE BURGLARY OR INTRUDER ALARMS WITHIN A CALENDAR YEAR WITHOUT IMPOSING AN ADMINISTRATIVE RESPONSE FEE UPON THE PERMITTEE. UPON RESPONDING TO THE SECOND FALSE ALARM AT AN ALARM SYSTEM LOCATION, THE POLICE CHIEF OR ALARM ADMINISTRATOR WILL ISSUE A LETTER INFORMING THE PERMITTEE OF THE TWO RESPONSES AND REQUESTING THAT CORRECTIVE MEASURES BE TAKEN. THE PERMITTEE MUST RESPOND IN WRITING TO THE POLICE CHIEF OR ALARM ADMINISTRATOR. THE WRITTEN RESPONSE MUST EXPLAIN THE REASONS OR CIRCUMSTANCES FOR THE FALSE ALARMS AND MUST DESCRIBE THE CORRECTIVE MEASURES WHICH WILL BE TAKEN TO AVOID FUTURE FALSE ALARMS. THE FAILURE OF THE PERMITTEE TO RESPOND IN WRITING MAY RESULT IN THE INITIATION OF PERMIT REVOCATION PROCEDURES PURSUANT TO SECTION 8.08.030 OF THIS CHAPTER.**

1. UPON A THIRD FALSE ALARM RESPONSE, THE PERMITTEE MAY BE SUBJECT TO A FEE OF ONE HUNDRED DOLLARS (\$100.00).

2. UPON A FOURTH FALSE ALARM RESPONSE, THE PERMITTEE MAY BE SUBJECT TO A FEE OF TWO HUNDRED DOLLARS (\$200.00).

3. UPON A FIFTH AND SUBSEQUENT FALSE ALARM RESPONSE, THE PERMITTEE MAY BE SUBJECT TO A FEE OF FOUR HUNDRED DOLLARS (\$400.00) AND PERMIT REVOCATION PROCEDURES MAY BE INITIATED PURSUANT TO SECTION 8.08.030 OF THIS CHAPTER.

4. THE CHIEF OF POLICE MAY WAIVE THE ADMINISTRATIVE RESPONSE FEE BASED UPON COOPERATIVE MEASURES TAKEN BY THE PERMITTEE TO REDUCE THE NUMBER OF FALSE ALARMS.

~~D. In the event of a false alarm and if requested by the police department, the permit holder shall file with the police department a report detailing the reasons for the false alarm and what, if any, corrective measures have been taken to avoid future false alarms.~~ **THE POLICE DEPARTMENT WILL RESPOND TO PANIC, DURESS, AND HOLD-UP ALARMS WHICH INDICATE THE NEED FOR AN IMMEDIATE EMERGENCY RESPONSE TO THE ALARM SYSTEM LOCATION. PERMITTEES WHO HAVE INSTALLED AND ACTIVATED THESE TYPES OF ALARMS ARE RESPONSIBLE FOR ENSURING THEY ARE BEING USED PROPERLY AND MAY BE SUBJECT TO THE FOLLOWING ADMINISTRATIVE RESPONSE FEES:**

1. UPON A THIRD FALSE ALARM RESPONSE, THE PERMITTEE MAY BE SUBJECT TO A FEE OF ONE HUNDRED DOLLARS (\$100.00).

2. UPON A FOURTH FALSE ALARM RESPONSE, THE PERMITTEE MAY BE SUBJECT TO A FEE OF TWO HUNDRED DOLLARS (\$200.00).

3. UPON A FIFTH AND SUBSEQUENT FALSE ALARM RESPONSE, THE PERMITTEE MAY BE SUBJECT TO A FEE OF FOUR HUNDRED DOLLARS (\$400.00) AND PERMIT REVOCATION PROCEDURES MAY BE INITIATED PURSUANT TO SECTION 8.08.030 OF THIS CHAPTER .

4. THE CHIEF OF POLICE MAY WAIVE THE ADMINISTRATIVE RESPONSE FEE BASED UPON COOPERATIVE MEASURES TAKEN BY THE PERMITTEE TO REDUCE THE NUMBER OF FALSE ALARMS.

8.08.055 ALARM COMPANIES; INSTALLERS; USERS—ALARM CANCELLATIONS.

A. EACH ALARM MONITORING COMPANY RESPONDING TO THE ACTIVATION OF AN ALARM WITHIN THE CITY LIMITS SHALL, BEFORE REQUESTING POLICE DISPATCH, ENGAGE IN THE VERIFICATION PROCEDURE DEFINED IN SECTION 8.08.010 OF THIS CHAPTER TO ATTEMPT TO CONTACT A PERSON WITH ACCESS TO THE ALARM SYSTEM LOCATION. IF THE ALARM MONITORING COMPANY CANNOT VERIFY THAT THE ALARM IS A FALSE ALARM, AFTER ENGAGING IN THE VERIFICATION PROCEDURE, IT MAY REQUEST POLICE DISPATCH TO THE ALARM SYSTEM LOCATION. THE POLICE DEPARTMENT WILL NOT RESPOND TO AN ALARM DISPATCH REQUEST RECEIVED FROM AN ALARM MONITORING COMPANY IF THE ALARM MONITORING COMPANY HAS NOT ENGAGED IN THE VERIFICATION PROCEDURE DEFINED IN SECTION 8.08.010 OF THIS CHAPTER UNLESS CRIMINAL ACTIVITY AT THE LOCATION IS VERIFIED BY VIDEO SURVEILLANCE OR BY SOMEONE ON SCENE.

1. ALARM MONITORING COMPANIES WILL NOT REQUEST POLICE DISPATCH SERVICES WITHIN SEVEN CALENDAR DAYS AFTER INSTALLATION OF A NEW ALARM SYSTEM UNLESS CRIMINAL ACTIVITY AT THE ALARM SYSTEM LOCATION IS VERIFIED BY VIDEO SURVEILLANCE OR BY SOMEONE ON SCENE.

2. HOLD-UP ALARMS, PANIC ALARMS AND DURESS ALARMS WILL BE HANDLED AS HIGH PRIORITY CALLS BY THE POLICE DEPARTMENT. IN THESE INSTANCES, THE ALARM MONITORING COMPANY IS NOT REQUIRED TO ENGAGE IN THE VERIFICATION PROCEDURE DEFINED IN SECTION 8.08.010 OF THIS CHAPTER PRIOR TO REQUESTING POLICE DISPATCH.

B. EACH ALARM MONITORING COMPANY AND INSTALLER SHALL NOTIFY ITS CUSTOMERS OF THE REQUIREMENT TO OBTAIN AN ALARM PERMIT FROM THE CITY PRIOR TO FINALIZING ANY SALES OR SERVICE AGREEMENT FOR AN ALARM SYSTEM.

C. ALARM PERMITTEES AND USERS:

1. EACH PERMITTEE AND EACH PERSON WHO INSTALLS OR ACTIVATES AN ALARM SYSTEM IS RESPONSIBLE FOR THE PROPER MAINTENANCE AND OPERATION OF THE ALARM SYSTEM IN A MANNER WHICH WILL PREVENT FALSE ALARMS FROM OCCURRING. MAINTENANCE INCLUDES, BUT IS NOT LIMITED TO, INSPECTING, REPAIRING AND REPLACING SENSORS AND ALARM SYSTEM COMPONENTS TO ENSURE THAT THEY ARE IN PROPER LOCATIONS AND IN PROPER WORKING ORDER.

2. ACTIVATION OF AN ALARM SYSTEM FOR ANY REASON OTHER THAN ITS INTENDED PURPOSE IS PROHIBITED.

3. EACH PERMITTEE OR PERSON WHO INSTALLS OR ACTIVATES AN ALARM SYSTEM WILL TRAIN EMERGENCY CONTACT PERSONS DESIGNATED BY THE PERMITTEE IN THE PROPER USE OF THE ALARM SYSTEM AND ENSURE THAT SUCH PERSONS HAVE ACCESS TO THE ALARM SYSTEM LOCATION.

D. ALARM POLICE DISPATCH REQUEST CANCELLATIONS.

AN ALARM DISPATCH REQUEST CALL MAY BE CANCELLED BY THE ALARM MONITORING COMPANY THAT GENERATED THE INITIAL CALL FOR SERVICE IF NOTIFICATION OF CANCELLATION IS MADE WITHIN THREE MINUTES AFTER POLICE OFFICERS ARE DISPATCHED TO THE ALARM SYSTEM

LOCATION AND BEFORE OFFICERS ARRIVE ON SCENE.

8.08.060 GOVERNMENT ALARM SYSTEMS-EXEMPTION.

THIS CHAPTER SHALL NOT APPLY TO AGENCIES OR INSTRUMENTALITIES OF THE UNITED STATES, THE STATE OF WYOMING, THE COUNTY OF LARAMIE, THE CITY OF CHEYENNE OR LARAMIE COUNTY SCHOOL DISTRICT NO. 1.

8.08.070 SCOPE OF POLICE DUTY – IMMUNITIES PRESERVED.

THE ISSUANCE OF AN ALARM PERMIT BY THE CITY OF CHEYENNE DOES NOT GUARANTEE THAT THE POLICE DEPARTMENT WILL RESPOND TO AN ALARM SYSTEM LOCATION. THE POLICE DEPARTMENT WILL MAKE EVERY EFFORT TO RESPOND IN ACCORDANCE WITH ITS STANDARD DISPATCH PRIORITIES. NEITHER THE CITY OF CHEYENNE, THE CHEYENNE POLICE DEPARTMENT NOR ANY OF THEIR OFFICERS, EMPLOYEES OR AGENTS, MAY BE HELD LIABLE FOR ANY LOSS, DAMAGE OR INJURY WHICH RESULTS FROM THE POLICE DEPARTMENT’S RESPONSE OR NON-RESPONSE TO AN ALARM DISPATCH REQUEST.

~~8.08.060~~ 8.08.080 Violation – Penalty.

Any person violating the provisions of this chapter will be deemed guilty of a misdemeanor, punishable pursuant to the general penalty provision of the city code.

Section 2. This ordinance shall be in full force and effect upon approval and publication but not sooner than September 1, 2013.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

RICHARD L. KAYSEN, MAYOR

(SEAL)

ATTEST:

CAROL INTLEKOFER, CITY CLERK

Publish: Wyoming Tribune-Eagle